

Court No. - 21

Case :- WRIT - C No. - 1432 of 2023

Petitioner :- Venus Sugar Limited Through Its General Manager Legal

Respondent :- State Of Uttar Pradesh And 2 Others

Counsel for Petitioner :- Diptiman Singh, Abhijit Chatterji, Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

Sri Pranjal Mehrotra, learned counsel appearing on behalf of respondent Corporation prays for and is granted time to file short counter affidavit and alongwith which, the agreement entered into between the parties at the time of enhancement of load from 150 KVA to 300 KVA shall be brought on record.

List as fresh on 25.01.2023.

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Order Date :- 17.1.2023

SL

Court No. - 21

Case :- WRIT - C No. - 1432 of 2023

Petitioner :- Venus Sugar Limited Through Its General Manager Legal

Respondent :- State Of Uttar Pradesh And 2 Others

Counsel for Petitioner :- Diptiman Singh, Abhijit Chatterji, Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

Short counter affidavit filed today is taken on record.

As prayed, a week's time is allowed for filing rejoinder affidavit.

List on 8.02.2023.

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Order Date :- 25.1.2023

SL

Court No. - 21

Case :- WRIT - C No. - 1432 of 2023

Petitioner :- Venus Sugar Limited Through Its General Manager Legal

Respondent :- State Of Uttar Pradesh And 2 Others

Counsel for Petitioner :- Diptiman Singh, Abhijit Chatterji, Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

Short rejoinder affidavit filed today is taken on record.

List on 21.02.2023.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 8.2.2023

SL

Court No. - 21

Case :- WRIT - C No. - 1432 of 2023

Petitioner :- Venus Sugar Limited Through Its General Manager
Legal

Respondent :- State Of Uttar Pradesh And 2 Others

Counsel for Petitioner :- Diptiman Singh, Abhijit Chatterji, Bidhan
Chandra Rai

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The petitioner has challenged the demand notice dated 18.11.2022 and bill cum disconnection notice dated 14.12.2022 by which the respondents have demanded the tariff difference between rates schedules LMV-1 and HV-2.

The case of the petitioner is that it had paid regular bills upto the month of November, 2022. On 18.11.2022, the impugned demand notice was issued demanding a sum of Rs. 70,45,021 plus Rs. 25 as cost of notice from the petitioner. On inquiry, it transpired that the said demand is for recovery of the difference in tariff between rates schedules LMV-1 and HV-2.

According to the petitioner, it had applied for enhancement of load from 150 KVA to 300 KVA in the year 2020 and thereafter, the load was enhanced and the supply was converted from domestic to industrial since 19.03.2021. The petitioner was paying tariff as applicable to HV-2 consumer since the said date. The impugned demand of difference in tariff calculated from 2018, as is the stand taken in the counter affidavit, is absolutely unsustainable in law.

Learned counsel for the petitioner submits that the petitioner has already filed objection before respondent no.3 under clause 6.5 of the U.P. Electricity Supply Code, 2005 and the same be directed to be decided.

Sri Pranjal Malhotra, learned counsel appearing for the respondent-Electricity Department does not oppose the said prayer.

Accordingly, the petition is **disposed of** with direction to respondent no.3 to decide the objection of the petitioner dated 25.11.2022 by treating the same to have been filed under Clause 6.5 of the U.P. Electricity Supply Code, 2005 by passing a

speaking order within four weeks from the date of communication of the instant order.

The impugned demand notice will remain in abeyance until the objections are decided and will thereafter abide by the decision taken.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 29.3.2023

Shivangi